

PRIVATE & CONFIDENTIAL

01 Jan 2026

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Dear **3412** ,

NON-COMPETE AGREEMENT ("AGREEMENT")

We refer to your employment contract dated **234** ("Contract").

The recruitment and HR services business have become increasingly competitive. As we are engaged in the recruitment and HR services business on an international scale and need to protect our legitimate business interests, it is vital that our proprietary business secrets be protected against any unauthorised use or misuse.

During your employment with us, you will have access to our proprietary business secrets including but not limited to:

- our business plans, strategies, forecasts and projections;
- our resource database, candidate database, client data base; and
- our methodologies and techniques,

collectively referred to as "Business Secrets"

Your employment with us will be conditional upon your agreement to accept and agree to the following:

1. Upon termination of your employment contract with With Kinna Pte Ltd in addition to the confidentiality obligations under the Contract, you shall not utilise any Business Secrets:
 - a. to gain an unfair advantage against us;
 - b. to prepare any competitive bid against us;
 - c. to solicit any candidate or client of ours; or
2. Upon termination of your employment contract with With Kinna Pte Ltd, you will not, for a period of six (6) months from the date of termination ("Prohibited Period"), accept direct or indirect employment with any company, which is:
 - a. In the business of providing candidates or associated information of the same to be considered for employment by third parties in Singapore and Malaysia;

- b. in the business of providing outsourced services to the following sectors in Singapore and Malaysia;
 - i. Frontline retail
 - ii. Food and beverage outlets
 - iii. Wholesales & Retail Companies or
 - c. is in competition with us.
- 3. We may, at our absolute discretion, waive your compliance with Section 2 above or reduce the Prohibited Period. For us to consider granting such waiver or reduction, you will need to provide the following details for our consideration:
 - a. Name of your next employer ("New Employer");
 - b. The countries in which the New Employer operates in;
 - c. The industries or sectors in which the New Employer operates in; and

Any waiver we grant may include conditions that we may impose at our discretion, which you must fulfil or undertake to fulfil. Failure to fulfil any such condition shall be deemed to be a breach of this Agreement and shall entitle us to seek damages and legal remedy against you including but not limited any interim injunction to suspend your employment with the New Employer.

- 4. If we do not grant you a waiver of Section 2 above, we shall continue to pay your salary during the Prohibited Period (or for any reduced Prohibited Period).

5. **General**

- a. In the event any clause in this Agreement is found to be illegal or void, such clause shall be deleted and have no effect on this Agreement. All other clauses in this Agreement shall remain valid and binding.
 - b. This Agreement shall supersede any prior representations made to you prior to your acceptance of this Agreement.
 - c. This Agreement is governed by the laws of Singapore and you agree to submit to the exclusive jurisdiction of the courts of Singapore.
 - d. All terms or words not defined here shall have the same meaning as those in the Contract. In event of any inconsistency between this and the Contract, the Contract shall prevail

We thank you for your understanding and cooperation on this matter.
Please confirm your acceptance of these terms and conditions of this Agreement by signing
on the duplicate copy of this contract and returning the same to us.

Yours faithfully
With Kinna Pte Ltd

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ACCEPTED AND AGREED BY:

Name in Full

Date

Signature